City of Melbourne: Business Setup & Compliance

Local registrations, permits and ongoing obligations for operating a business in the City of Melbourne.

Source: City of Melbourne (melbourne.vic.gov.au) — Start a business, Outdoor Café Guide and Outdoor dining permits pages. Content summarised for iLoca; see melbourne.vic.gov.au for full detail and current fees.

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1. Getting Started in the City of Melbourne

The City of Melbourne runs a dedicated Business Concierge service to help traders open, relocate or grow a business in the municipality, with fast-tracked permit support and case managers across hospitality, retail, biomed, fintech, professional services and more.

Free tools before you commit

- Self-assessment tool: check zoning and requirements before opening a business at a specific address
- Commercial property lookup: free planning, demographic and permit information for a property
- Australian Business Licence and Information Service (ABLIS): find every licence, permit and approval your activity needs across federal, state and council levels
- Business Concierge Service: phone 9658 9658 or request an appointment for tailored, fast-tracked support

2. Core Registrations

Before trading in Melbourne

In addition to the standard federal/state registrations (ABN, business name, tax registrations — see the Plan guide), most premises-based businesses in the City of Melbourne need a planning permit for change of use or building works, and any council-specific licences identified through the self-assessment tool or ABLIS.

3. Outdoor Trading and Hospitality Permits

Food and hospitality businesses wanting to trade on the footpath, in laneways or in public squares need an Outdoor Dining / Footpath Trading Permit, governed by the City of Melbourne's Outdoor Café Guide and Activities Local Law 1999.

Eligibility

- Must be an extension of an existing indoor café or restaurant with a working kitchen — not a stand-alone outdoor space
- 'Liquor only' venues are not eligible for an outdoor café permit
- Crockery and glassware are preferred over disposables to reduce street litter

Design and access requirements

Pedestrian clearance requirements vary by street type — for example a 4500mm minimum on Swanston Street versus 2000mm on most intermediate and minor streets — and furniture, screens and umbrellas must meet City of Melbourne design and heritage specifications. Full technical detail is in the Outdoor Café Guide.

Liquor, safety and insurance

- A council trading permit does not authorise alcohol service — a separate liquor licence approval from Liquor Control Victoria is required to serve alcohol outdoors
- A minimum $10 million public liability insurance policy noting the City of Melbourne's interest is required
- Outdoor trading generally runs 7am–11pm; later hours are assessed case by case, especially near residential areas

4. Ongoing Compliance

Environment Local Law obligations

- Keep the trading area clean, with litter (including cigarette butts) stored in approved receptacles and never swept into stormwater drains
- Maintain furniture, screens and planters in good, clean condition
- Follow noise, air quality and waste-discharge requirements set out in the Environment Local Law 1999

Staying compliant

Permits are tied to the site, not the business owner — a change of ownership requires an amended application. The City of Melbourne can request evidence of compliance (like a current Certificate of Insurance) at any time, and unmaintained furniture or breaches must generally be fixed within 24 hours to 14 days depending on severity. For anything not covered here, the Business Concierge Service (9658 9658) is the fastest way to get a current, site-specific answer.